

CV-24-002604 CANO, MARIA vs DOCTORS MEDICAL CENTER OF MODESTO INC – Plaintiff’s Motion to Tax Costs of Defendant Silvia Diego, M.D. [C.C.P. 1033.5] - DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: Defendant Diego is the prevailing party following summary judgment and is entitled to recover allowable costs as a matter of right under Code of Civil Procedure section 1032, subject to plaintiffs' burden to show that particular items are not authorized, not reasonably necessary, or unreasonable in amount. (Code Civ. Proc., § 1033.5; Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 774.) Plaintiffs have not met that burden on this record. The Court further finds that Dr. Diego's Code of Civil Procedure section 998 offers served 1-17-25 were made in good faith based on the information available at the time, and plaintiffs did not obtain a more favorable judgment. (Code Civ. Proc., § 998, subd. (c)(1); Elrod v. Oregon Cummins Diesel, Inc. (1987) 195 Cal.App.3d 692, 698–699.) Accordingly, in the Court's discretion, Dr. Diego's post-offer expert witness fees are recoverable. Records subpoena/medical records costs are allowed as reasonably necessary costs of taking depositions/obtaining records in this medical negligence action. (Code Civ. Proc., § 1033.5, subd. (a)(3); Evers v. Cornelson (1984) 163 Cal.App.3d 310, 317.) Defendant Silvia Diego, M.D. is awarded costs in the amount stated in her Memorandum of Costs: \$29,740.46.

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